UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF LOUISIANA

In re: JOHN Q. SAMPLE, Debtor. SAMPLE CREDITOR, LLC, Plaintiff, v. JOHN Q. SAMPLE, Defendant.	Case No. 26-10000 Chapter 7 Adversary Proceeding No. 26-01000

COMPLAINT ASSERTING NONDISCHARGEABILITY OF DEBT

Plaintiff Sample Creditor, LLC ("Plaintiff"), through undersigned counsel, asserts this adversary proceeding against the Debtor, John Q. Sample (the "Debtor"), regarding the dischargeability of a debt, and respectfully represents:

1. Plaintiff is a creditor of the Debtor by virtue of an unpaid balance of $48,000.00 due under a written equipment lease between Plaintiff and Sample Equipment Services, LLC (the "Company"), of which the Debtor is the sole member and manager, together with interest, late charges and reasonable attorney's fees as provided in that lease.

2. The Debtor is the defendant herein. He filed a voluntary petition under chapter 7 of the Bankruptcy Code on April 2, 2026, commencing the above-captioned case.

3. This is an action to determine whether the debt described above is excepted from the Debtor's discharge under 11 U.S.C. § 523(a)(2)(B). It is brought under Federal Rule of Bankruptcy Procedure 7001(6).

4. This Court has jurisdiction under 28 U.S.C. §§ 157 and 1334. This is a core proceeding under 28 U.S.C. § 157(b)(2)(I). Plaintiff consents to the entry of final orders and judgment by this Court in this proceeding. Fed. R. Bankr. P. 7008(a).

5. Venue is proper in this district and division under 28 U.S.C. § 1409(a) because this proceeding arises in and relates to the above-captioned case, which is pending in this district.

6. Plaintiff Sample Creditor, LLC is a Louisiana limited liability company with its principal place of business in Ascension Parish, Louisiana.

7. On or about May 11, 2025, Plaintiff and the Company entered into a Master Equipment Lease Agreement (the "Lease") for three forklifts and related equipment (the "Equipment") for a total price of $64,000.00.

8. The Debtor signed a written guaranty of the Company's obligations under the Lease on the same day.

9. Plaintiff delivered the Equipment to the Company on June 2, 2025, and performed all of its obligations under the Lease. The Equipment remains in the Company's possession at its facility in Ascension Parish, Louisiana.

10. On May 1, 2025, ten days before the Lease was signed, the Debtor signed and delivered to Plaintiff a written financial statement for the Company (the "Financial Statement"). The Financial Statement represented that the Company held $310,000.00 in unrestricted cash and that the Company had no pending judgments against it.

11. The Financial Statement was materially false when it was made. On April 14, 2025, a judgment for $212,000.00 had been entered against the Company in favor of a trade supplier, and the Company's cash balance on May 1, 2025 was less than $9,000.00.

12. The Debtor knew that the Financial Statement was false when he signed it. He caused it to be delivered to Plaintiff so that Plaintiff would rely on it in deciding whether to enter into the Lease.

13. Plaintiff reasonably relied on the Financial Statement. Plaintiff would not have entered into the Lease, or extended credit on the Equipment, had it known the true condition of the Company.

14. The Company paid $16,000.00 under the Lease and then stopped paying. Plaintiff sent a written notice of default on January 5, 2026. The Company and the Debtor did not cure the default.

15. Plaintiff's counsel sent the Debtor a written demand for payment of the balance on February 2, 2026. The Debtor did not respond to the demand and did not pay any part of the balance.

16. On his bankruptcy schedules, the Debtor listed Plaintiff's claim as an unsecured claim of $48,000.00. The Debtor did not disclose the April 14, 2025 judgment against the Company in his Statement of Financial Affairs.

17. Plaintiff has incurred attorney's fees and costs in attempting to collect the balance. Those fees and costs are recoverable under the Lease and are part of the debt excepted from discharge by this complaint.

18. The $48,000.00 balance owed by the Debtor is a debt for money obtained by a materially false written statement respecting the Debtor's or an insider's financial condition, made with intent to deceive and on which Plaintiff reasonably relied.

19. The debt is therefore nondischargeable under 11 U.S.C. § 523(a)(2)(B) and is excepted from any discharge entered in the Debtor's case.

20. Plaintiff reserves the right to amend this complaint to assert additional grounds for nondischargeability, including under 11 U.S.C. § 523(a)(6), if discovery reveals facts supporting them.

WHEREFORE, Plaintiff prays that the Debtor be served and cited to appear, and that after all due proceedings there be judgment in favor of Plaintiff determining that the debt of $48,000.00, together with interest, late charges and attorney's fees as provided in the Lease, is nondischargeable under 11 U.S.C. § 523(a)(2)(B), and granting Plaintiff all other just and equitable relief.

Dated: [date]

Respectfully submitted,

/s/ [COUNSEL NAME] (La. Bar No. [number])
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